No. 99-0001

IN THE UNITED STATES COURT OF APPEALS
FOR THE NINTH CIRCUIT

Jane Roe,
Plaintiff-Appellee,

v.

Acme Widget Co.,
Defendant-Appellant.

On Appeal from the United States District Court for the Northern District of California
D.C. No. 3:99-cv-00001; The Honorable A. Fictional Judge

APPELLEE'S MOTION TO DISMISS APPEAL FOR LACK OF JURISDICTION

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INTRODUCTION

Appellee moves under Fed. R. App. P. 27 to dismiss this appeal. The order appealed from is not a final decision under 28 U.S.C. § 1291, and no other statute gives this Court jurisdiction over it.

ARGUMENT

I. The Order Is Not a Final Decision

A decision is final when it ends the litigation on the merits and leaves nothing for the court to do but execute the judgment. The district court has not entered judgment, and claims remain pending before it. A party may not manufacture finality to obtain review of an interlocutory order. *Microsoft Corp. v. Baker*, 582 U.S. 23 (2017).

II. No Exception Applies

Appellant identifies no collateral-order ground and sought no certification. The appeal should therefore be dismissed.

CONCLUSION

The Court should dismiss the appeal for lack of jurisdiction.

Respectfully submitted,

s/ A. Sample Lawyer
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Attorney for Plaintiff-Appellee

January 5, 2027

CERTIFICATE OF COMPLIANCE

1. This document complies with the word limit of Fed. R. App. P. 27(d)(2)(A) because, excluding the parts of the document exempted by Fed. R. App. P. 32(f), this document contains 132 words.

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s/ A. Sample Lawyer	January 5, 2027
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